

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

CITATION: *Firat v Workers' Compensation Regulator*
(No 2) [2024] QIRC 166

PARTIES: **Firat, Fatime**
(Appellant)

v

Workers' Compensation Regulator
(Respondent)

CASE NO: WC/2020/17

PROCEEDING: Appeal against decision of Workers'
Compensation Regulator

DELIVERED ON: 10 July 2024

DATE OF WRITTEN
SUBMISSIONS: 28 June 2024

MEMBER: O'Connor VP

ORDER: **The Appellant pay the Respondent's costs
of the hearing fixed in the amount of
\$10,450.05.**

CATCHWORDS: WORKERS' COMPENSATION -
ENTITLEMENT TO COMPENSATION -
PERSONS ENTITLED TO
COMPENSATION - COSTS - where appeal
decision of Respondent confirmed - where
the Commission has the statutory power to
award costs - where costs of the hearing are
in the discretion of the Commission - whether

costs of the hearing should be ordered

LEGISLATION:

Uniform Civil Procedure (Fees) Regulation 2019 (Qld), part 3, s 24(b)

Uniform Civil Procedure Rules 1999 (Qld), schedule 2, part 2

Workers' Compensation and Rehabilitation Act 2003 (Qld), s 558

Workers' Compensation and Rehabilitation Regulation 2014 (Qld), r 132

CASES:

Firat v Workers' Compensation Regulator [2024] QIRC 137

Latoudis v Casey (1990) 170 CLR 534

Northern Territory v Sangare (2019) 265 CLR 164

Oshlack v Richmond River Council (1998) 193 CLR 72

APPEARANCES:

Costs application dealt with on the papers

Reasons for Decision

- [1] On 29 May 2024 I published my reasons for decision in *Firat v Workers' Compensation Regulator*,¹ which confirmed the review decision of the Workers' Compensation Regulator ('the Respondent'). The parties were ordered to file written submissions on the costs of the hearing by 4.00 pm on Friday 28 June 2024.
- [2] No submissions have been received from Ms Fatime Firat, ('the Appellant').
- [3] The Respondent successfully defended the appeal and in so doing has incurred costs, including for counsel who appeared in the hearing of the appeal. In addition, the Respondent requested disclosure and made disclosure in accordance with directions issued by the Queensland Industrial Relations Commission ('the Commission') on 10 March 2020.

¹ [2024] QIRC 137.

- [4] The Respondent seeks an order pursuant to s 558(3) of the *Workers' Compensation and Rehabilitation Act* 2003 (Qld) ('the WCR Act') for the following:

(a)	Item 8(f) Counsel's fees on hearing, first day - 4 April 2022	\$1,545.00
(b)	Item 8(g) Counsel's fees on each subsequent day of hearing - 2 or more hours, (\$1,126.00 x 5 days) - 25, 26, 27 July 2022, 26 & 27 October 2022 -	\$5,630.00
(c)	Item 10(b) on hearing with counsel, attendance of clerk (\$281.10 x 1) - 4 April 2022	\$ 281.10
(d)	Item 10(b) on hearing with counsel, attendance of clerk (\$306.75 x 5) - 25, 26, 27 July 2022, 26 & 27 October 2022 -	\$1,533.75
(e)	Item 13(a)(i) allowance to party requesting disclosure	\$ 335.30
(f)	Item 13(a)(ii) allowance to party making disclosure	\$ 605.60
	Total Counsel's Fees	\$7,175.00
	Total Clerk's Fees	\$1,814.85
	Total Disclosure Allowances	\$ 940.90

- [5] The Respondent also applies for the attendance allowance, provided for in Part 3, s 24(b) of the *Uniform Civil Procedure (Fees) Regulation* 2019, for its lay witness, in the amount of \$86.55. Such an allowance is a cost that may be allowed.²

Section 24(b) - attendance allowance per lay witness per day (\$86.55 x 6);
 Ali Aktas - \$86.55; Oguz Erylimaz - \$86.55; Hamdullah Yegenler - \$86.55;
 Abdullah Cavas - \$86.55; Ali Altinepe - \$86.55; Suleyman Cangokce - \$86.55.
Total - \$519.30

- [6] The Respondent submits there is no reason why the Commission would not exercise its discretion to make an order for costs as set out below:

Counsel's fees of hearing	\$7,175.00
Clerk's fees of hearing	\$1,814.85
Disclosure allowances	\$ 940.90
Lay witness fees	\$ 519.30
Total	\$10,450.05

- [7] Costs before the Commission are calculated in accordance with s 558(3) of the WCR Act, Schedule 2 Scale of Costs - Magistrates Court, Part 2, Scale C of the *Uniform Civil Procedure Rules* 1999 (Qld) and r 132 of the *Workers' Compensation and Rehabilitation Regulation* 2014 (Qld) ('the WCR Regulation').

² *Workers' Compensation and Rehabilitation Regulation* 2014, s 132(2)(b).

[8] Section 558(3) of the WCR Act relevantly provides:

558 Powers of appeal body

...

- (3) Costs of the hearing are in the appeal body's discretion, except to the extent provided under a regulation.

[9] Regulation 132 of the WCR Regulation provides:

132 Costs-proceeding before industrial magistrate or industrial commission

- (1) A decision to award costs of a proceeding heard by an industrial magistrate or the industrial commission is at the discretion of the magistrate or commission.
- (2) If the magistrate or commission awards costs -
 - (a) costs in relation to counsel's or solicitor's fees are as under the *Uniform Civil Procedure Rules 1999*, schedule 2, part 2, scale C; and
 - (b) costs in relation to witnesses' fees and expenses are as under the *Uniform Civil Procedure (Fees) Regulation 2019*, part 3; and
 - (c) costs in relation to bailiff's fees are as under the *Uniform Civil Procedure (Fees) Regulation 2019*, schedule 2, part 2.
- (3) The magistrate or commission may allow costs up to 1.5 times the amounts provided for under subsection (2)(a), in total or in relation to any item, if the magistrate or commission is satisfied the amounts are inadequate having regard to-
 - (a) the work involved; or
 - (b) the importance, difficulty or complexity of the matter to which the proceeding relates.

[10] Section 558 of the WCR Act and r 132 of the *WCR Regulation* grant the Commission the statutory power to award costs.

[11] The discretion to make an order for costs must be exercised judicially by reference only to considerations relevant to its exercise and upon facts connected with or leading up to the litigation.³

[12] In *Oshlack v Richmond River Council*,⁴ McHugh J (Brennan CJ concurring) wrote:

By far the most important factor which courts have viewed as guiding the exercise of the costs discretion is the result of the litigation. A successful litigant is generally entitled to an award of costs.⁵

³ *Northern Territory v Sangare* (2019) 265 CLR 164, 172-3 [24] (Kiefel CJ, Bell, Gageler, Keane, and Nettle JJ).

⁴ (1998) 193 CLR 72.

⁵ *Oshlack v Richmond River Council*, (1998) 193 CLR 72, [66].

- [13] The purpose of an award of costs was expressed by the High Court in *Latoudis v Casey*,⁶ where Mason CJ wrote:

It will be seen from what I have already said that, in exercising its discretion to award or refuse costs, a court should look at the matter primarily from the perspective of the defendant. To do so conforms to fundamental principle. If one thing is clear in the realm of costs, it is that, in criminal as well as civil proceedings, costs are not awarded by way of punishment of the unsuccessful party. They are compensatory in the sense that they are awarded to indemnify the successful party against the expense to which he or she has been put by reason of the legal proceedings ...⁷

His Honour, the Chief Justice further stated:

Most of the arguments which seek to counter an award of costs against an informant fail to recognize this principle and treat an order for costs against an informant as if it amounted to the imposition of a penalty or punishment. But these arguments only have force if costs are awarded by reason of misconduct or default on the part of the prosecutor. Once the principle is established that costs are generally awarded by way of indemnity to a successful defendant, the making of an order for costs against a prosecutor is no more a mark of disapproval of the prosecution than the dismissal of the proceedings.⁸

McHugh J said:

The rationale of the order is that it is just and reasonable that the party who has caused the other party to incur the costs of litigation should reimburse that party for the liability incurred. The order is not made to punish the unsuccessful party. Its function is compensatory.⁹

- [14] The decision to award costs of a proceeding heard by a member of the Commission is at the discretion of the Commission.
- [15] In the present case, the Respondent was successful. There is no reason why the Appellant should not pay the Respondent's costs. Further, no submissions have been received from the Appellant for consideration as ordered by the Commission in the decision released on 29 May 2024. Accordingly, the Commission orders as follows:

Order

The Appellant pay the Respondent's costs of the hearing fixed in the sum of \$10,450.05.

⁶ *Latoudis v Casey* (1990) 170 CLR 534, 543.

⁷ *Latoudis v Casey* (1990) 170 CLR 534, 543, [13].

⁸ *Ibid.*

⁹ *Ibid* 567, [3].